

HOUSE BILL 1279

By Hill

AN ACT to amend Tennessee Code Annotated, Title 13,
Chapter 7, Part 4, relative to historic commissions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 13-7-407, is amended by adding the following as new subsections:

(c) Notwithstanding this part to the contrary, a privately owned property built after 1899 that is located in whole or in part in a tourism development zone, as defined in § 7-88-103, is not subject to the authority of a historic zoning commission or a historic zoning law, rule, review guideline, or regulation, with respect to any aspect of a project that relates to or includes lighting; televisions; monitors; signs; speakers; electronic devices, mechanisms, or equipment; weatherization such as seasonal canopies, heaters, or tents; or any other aspect of a building, structure, or other improvement to real property that, at the time the project commences, was not historic in nature.

(d) A property owner whose project falls within the exception set forth in subsection (c) is not required to make an application to a historic zoning commission.

(e) A historic zoning commission does not have authority to stop or prevent the continuation of such project if, upon notice from the historic zoning commission that a project does not meet the exception set forth in subsection (c), a property owner files a good faith affidavit with the commission along with the opinion of a licensed architect that the project falls within the exception. Upon the receipt of a good faith affidavit and opinion from a licensed architect, the historic zoning commission has no authority over the project and in any subsequent hearing or proceeding whether administrative, in a

court of record, or otherwise, the opinion of the architect must be afforded a presumption of correctness that may only be overcome by a finding of clear and convincing evidence that the project is not subject to the exception found in subsection (c).

(f) If any aspect of a project involves any life or safety issues with respect to doors, windows, ingress, or egress over which the local fire marshal or a similar government official has authority pursuant to any law, regulation, or rule, the fire marshal or government official may override a decision by a historic zoning commission related to such project.

(g) As used in this section, "project" means any construction, alteration, repair, improvement, rehabilitation, relocation, or demolition of any building, structure, or other improvement to real property, or any aspect thereof.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.